

## 24STCV02409 24STCV02409

County: los-angeles

Division: Civil Law and Motion

Department: 617

Hearing date: 2026-08-04

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Case Number: 24STCV02409 Hearing Date: August 4, 2026 Dept: 617

Dept.

617

Date:

8-4-26

Case

#: 24STCV02409

Trial

Date: 10-26-26

BIFURCATE

MOVING

PARTY: Defendants, Brian Grant Barrett as Trustee of the Brian Barrett  
Revocable Trust and Los Angeles Property Management Group

RESPONDING

PARTY: Unopposed/Plaintiff, Randall Leo Schweitzer

RELIEF

REQUESTED

Motion

to Bifurcate

SUMMARY

## OF ACTION

### Plaintiff

Randall Leo Schweitzer filed the instant negligence action against Defendants Brian Grant Barrett as Trustee of the Brian Barrett Revocable Trust and the Los Angeles Property Management Group after he allegedly fell from a set of stairs on a property owned and managed by Defendants, respectively.

RULING: Granted.

### Request

for Judicial Notice: Granted.

### The

Court takes judicial notice of the existence of the complaint filed in the instant action. (Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCort (2001) 91 Cal.App.4th 875, 882.) Judicial notice is also taken of Defendants' requests for admissions and the Court's order deeming them admitted. (Id. at pp. 885-86.)

Defendants move to bifurcate trial on liability and damages. They argue that bifurcation promotes judicial economy because Plaintiff's deemed admissions negate liability, saving time and expense from adjudicating damages issues. They further contend that bifurcating trial would prevent juror imposition of liability based solely on sympathy for Plaintiff's alleged injuries. Plaintiff does not oppose the motion. Defendants' motion is granted.

### Code of

Civil Procedure section 598 states in part: "The court may, when the convenience of witnesses, the ends of justice, or the economy and efficiency of handling the litigation would be promoted thereby, on motion of a party, after notice and hearing, make an order, no later than the close of pretrial conference in cases in which such pretrial conference is to be held, or, in other cases, no later than 30 days before the trial date, that the trial of any issue or any part thereof shall precede the trial of any other issue or any part thereof in the case, except for special defenses which may be tried first pursuant to Sections 597 and 597.5." Code of

Civil Procedure, section 1048, subdivision (b), additionally adds: "The court, in furtherance of convenience or to avoid prejudice, or when separate trials

will be conducive to expedition and economy, may order a separate trial of any cause of action, including a cause of action asserted in a cross-complaint, or of any separate issue or of any number of causes of action or issues, preserving the right of trial by jury required by the Constitution or a statute of this state or of the United States.”

Trial is bifurcated. Bifurcation

promotes judicial economy in light of Plaintiff’s deemed admissions. Plaintiff is deemed to have admitted, among other things, that Defendants were not negligent and did not cause Plaintiff’s injuries. [Elkerton Decl. ¶ 5, Ex. A.]

These admissions potentially foreclose the liability issue, making adjudication of damages unnecessary. The unopposed motion is therefore granted, and the issues of liability and damages are bifurcated.

Trial on liability to precede damages.

Defendants to give notice.